

Policy Title: Signature Authority for Deeds and Easements

Policy Number: Part 7, Planning and Land Use; Chapter 5, Miscellaneous; Section 5

Adopting Resolution: CC23-257

References: Resolutions CC92-453, CC92-573, CC04-065, CC06-066, CC06-544, CC15-310, CC16-476

Effective Date: September 12, 2023

Adoption Date: September 12, 2023

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Policy Custodian: Development and Transportation Department

Purpose: To permit the Chairman of the Board of County Commissioners to sign deeds and acceptance certificates on right-of-way and easement deeds under defined circumstances.

A. The Chairman of the Board of County Commissioners is authorized to execute:

1. The acceptance certificate on deeds conveying rights-of-way and/or easements to the county,
2. Deeds conveying right-of-way and/or easements on right-of-way or relinquishing county interest in an easement, and
3. Deeds for the conveyance of park land and school land when a parcel of land has been conveyed to the county to satisfy a park and school dedication requirement, and the county desires to convey that land to another entity for such continued use.

B. The following criteria must be met prior to execution:

1. The deed or easement or easement on right-of-way is required pursuant to one of the following:
 - a. The deed or easement or easement on right-of-way is required pursuant to county regulations as a part of an approved Cooperative Road Improvement or other county project, or any land development regulation, including, but not limited to a plat, exemption from plat, site development plan, minor adjustment, land disturbance permit and site approval; or
 - b. The avigation easements is obtained in accordance with the Rocky Mountain Metropolitan Airport Master Plan, as such may be amended from time to time; and

2. The deed or easement or easement on right-of-way and legal description have been approved by county staff; and
3. The deed or easement on right-of-way has been approved as to form by the County Attorney's Office.
4. With the exception of easements on Rocky Mountain Metropolitan Airport property, any deed or easement on county owned property that is not right-of-way shall be obtained in accordance with the Sale or Exchange of County Owned Real Property Policy.